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Kestrel Eye Care Jobs

Legal review pack: employment and disclosure

For a fixed fee review meeting about my employment agreement and the disclosure to my employer. It gives a short summary of the business, and the questions.

Prepared on 31st October 2026 by Steve Smith, founder, from an audit of the website and its code carried out on 30th October 2026. Updated on 12th November 2026 with a page on what has changed since 5th November 2026 and 4 new questions (Part H), from a second audit.
The legal references in this pack are an AI assistant's reading and were not checked by a lawyer. Where it is unsure, it says so. Please verify them.

How to use this pack. Part 1 summarises the business. Part A has the questions, numbered 1 to 6. My employment agreement is attached separately. Business, privacy and technology questions are being handled separately.

Part 1. The business in one page

What it is. Kestrel Eye Care Jobs (eyecarejobs.ca) is a self serve job board for Canadian eye care: optometrists, opticians, optometric assistants and technicians, practice managers, patient care teams and, later, supplier representatives and locums. Independent and corporate practices post side by side. Candidates search free; clinics pay to post.

Where it stands. Not launched. A "coming soon" page with a waitlist is public. Accounts, job posting, applications, an admin review queue and an AI job ad writer are built and tested, but only with my own test accounts. There are no real users, no payments and no outreach to clinics. Clinic sign up is by invitation only until launch. Target: a free launch in January 2027 at the earliest, only after the matters in Part A are settled. A blog is being written to build search ranking over time.

The people. I am the only founder and the only person with access. I work full time for another organisation (see Part A). I am not a developer: the software is written by an AI coding assistant at my direction, and I review and approve it.

Money. Free launch for 30 to 60 days, then introductory prices of $39 (support staff), $49 (opticians) and $59 (optometrists) per 30 day post, then $79 a single post or $199 a month for a clinic pass (up to 5 live posts), with an annual option of $1,990. Prices are before HST. Payments (Stripe) are not built yet. Target revenue is $150,000 a year in 18 to 24 months, on running costs under $10,000 a year.

What the product promises that has legal edges. Every post must show a pay range (no more than $50,000 wide unless the top is over $200,000), say yes or no to "existing vacancy" and to "uses AI to screen candidates", and must not require "Canadian experience". Candidates apply through Kestrel; clinics see an application only after the candidate sends it. Later, Kestrel may list jobs it finds on clinics' own careers pages (labelled "found on the clinic's website, not yet claimed"), expire them after 21 days, and invite the clinic to claim them. That outreach is switched off.

Part A. My employment and the disclosure to my employer

Why this comes first. I plan to launch only after my employer has been told and has acknowledged it. I would like your advice on the agreement before I make that disclosure.

My employer	An organisation that supports independent optometry practices through a buying group. It is not named in this document. I will name it at the meeting.
My role	Business coach, working directly with member clinics. I do not run their hiring.
Overlap	**Yes, and this is the central issue.** Kestrel's core audience is independent optometry practices, and several hundred of them are my employer's member clinics. My employer offers its members a job board. It is for members only: posts can be made public, but they get little search traffic. Another group runs a similar members only board. The best known public job board in the field is owned by a subsidiary of my employer. I do not work for that subsidiary. I coach the member clinics in my day job. I would like Kestrel to be able to benefit those members, possibly under a paid arrangement. Without that, Kestrel could not serve a large share of independent clinics.
What I have kept separate	Kestrel uses no employer data, member lists, devices, accounts, email or branding. It has its own domain, email, accounts and hosting. Work on it is done in my own time. Clinic outreach is switched off. I have confirmed this is accurate.
What already exists in public	The domain eyecarejobs.ca, a coming soon page with a waitlist (1 test entry), and a blog being prepared. No clinics or candidates have been contacted.

1. Please review sections 7 and 9 of my employment agreement (attached). What do they restrict: outside business activity, competing business, soliciting my employer's clients or members, use of confidential information, or ownership of anything I create?
2. Does Kestrel, as described, fall inside any restriction? My employer offers a job board or postings service to the same independent clinics that Kestrel targets. Kestrel would also compete with a public job board owned by my employer's subsidiary. Is Kestrel a competing business, a conflict of interest, or both? Does my exposure change depending on which parts I do (for example, a job board versus outreach to independent clinics, or my using what I know from coaching them)?
3. What should the disclosure say, in what form, and to whom? Do I need written consent, or is acknowledgement enough? How should it describe the overlap with my employer's job board? Can you draft or review the letter?
4. Is it a problem that the domain, the waitlist page and a blog exist before the disclosure? Is there anything I should stop, slow down or avoid until it is acknowledged?
5. What should I do to keep my work and Kestrel clearly separate, beyond what I have already done?

6. If my employer objects or sets conditions, what are my realistic options? For example: a different audience (suppliers, corporate groups and candidates rather than my employer's member clinics), a promise not to contact member clinics, a delay, negotiated terms, or an arrangement where Kestrel is offered to members as a benefit, possibly paid for by my employer. If that is possible: how do I avoid being on both sides of the deal, who should negotiate for my employer, when in the process should it be raised (in the disclosure or after), and how should payment be structured?

Documents to bring

- My employment agreement, and any employee handbook or policy on outside activities.
- The disclosure letter, if I bring a first attempt.